

1880

THE
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public property. If the principle only applies to the property which is admitted to be exempt, then we have no right to extend the exemption.

The first question, therefore, is—What is the principle on which the exemption of the person of sovereigns and of certain public properties has been recognised? “Our king,” says Blackstone (B. 1, c. 7), “owes no kind of subjection to any other potentate on earth. Hence it is that no suit or action can be brought against the king, even in civil matters, because no Court can have jurisdiction over him. For all jurisdiction implies superiority of power; authority to try would be vain and idle without an authority to redress, and the sentence of a Court would be contemptible unless the Court had power to command the execution of it, but who shall command the king?” In this passage, which has been often cited and relied on, the reason of the exemption is the character of the sovereign authority, its high dignity, whereby it is not subject to any superior authority of any kind. “The world,” says Wheaton, adopting the words of the judgment in the case of *The Exchange* (1), “being composed of distinct sovereignties, possessing equal rights and equal independence, all sovereigns have consented to a relaxation in practice, under certain peculiar circumstances, of that absolute and complete jurisdiction within their respective territories which sovereignty confers.” “This perfect equality and absolute independence of sovereigns has given rise to a class of cases in which every sovereign is understood to waive the exercise of a part of that complete exclusive territorial jurisdiction which has been stated to be the attribute of every nation.” “One of these is the exemption of the person of the sovereign from arrest or detention within a foreign territory. Why have the whole world concurred in this? The answer cannot be mistaken. A foreign sovereign is not understood as intending to subject himself to a jurisdiction incompatible with his dignity and the dignity of his nation.” By dignity is obviously here meant his independence of any superior authority. So Vattel, Lib. 4, c. 7, s. 108, speaking of sovereigns, says:—“S’il est venu en voyageur, sa dignité seule, et ce qui est dû à la nation qu’il représente et qu’il gouverne, le met à couvert de toute insulte, lui

(1) 7 Cranch, 116.